DIRECTION

Doc Type	Form	Issue Date	1 September 2021
Doc. No.	SOP-APS-001	Eff. Date	1 September 2021
IP	Food Safety Agency (Pty) Ltd	Rev. Date	1 January 2023
Designed by	N Bergh	Revision	V5
Approved by	Chief Executive Officer		

Producer/Importer/Butcher/Retailer Facility	NJ Fresh Produce and Butchery
Owner / Manager / Representative	Chris
Physical Address	e/o Hospital Street and Hans van Rensburg Shop no 1 Polokwane
E-Mail Address	marianjfreshproduce@gmail.com
Contact Number	0836263137
Date of Visit	04/09/2025
Nature of Inspection	Inspection
Direction Reference Number	NJ Fresh Produce and Butchery/143/04/09/2025/01

The products listed and described below and which have been marked or pointed out by me personally, are being sold / imported, are in contravention of Section 3 (1) of the Agricultural Production Standards Act, 1990(Act 119 of 1990), read in conjunction with the relevant regulations regarding the sale of products in terms of Section 15 of the Act.

☑ **DIRECTION:** You are hereby directed in terms of **Section 3A, (1) (b)** of the said Act to:

Rectify the non-conformity as mentioned below before or on **15/10/2025**

☐ **SEIZURE:** The owner or person in charge of the place, premise or conveyance failed to comply with the direction (Number: _____) issued in terms of section 3A (1)(b) of the said Act and thereby committing an offence in terms of section 11 (1)(d). The product is therefore seized by the Executive Officer: Agricultural Product Standards in terms of section 7 (1)(c) and 8 of the said Act with immediate effect.

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Nature of Direction: Marking Requirements / Container and Outer Containers

Rectify the non-conformity as mentioned below before or on: **15/10/2025**

DEVIATIONS (NON-CONFORMITIES)

Point	Product Name	Nature of Deviation from Regulation	Regulation Number
1	NJ Fresh Produce & Butchery/Cheese wors	Marking Requirements - Appropriate Product Name	[Reg. 7(1)(a) & 8]
2	NJ Fresh Produce & Butchery/Cheese wors	Marking Requirements - Country of Origin	[Reg. 7(1)(e) & 11]
3	NJ Fresh Produce & Butchery/Cheese wors	Marking Requirements - Name and Address	[Reg. 7(1)(c)]
4	NJ Fresh Produce & Butchery/Cheese wors	Marking Requirements - Restricted Particulars (Section 6 of APS Act)	[Reg. 13]

Comments (if found)

1. The name of the species used to manufacture the product is not indicated as part of the product name for the class concerned as "Cheese Chicken Wors".
 - The letter size of the word “Chicken” is bigger than the letter size of the appropriate product name.
2. Incorrect indication of the country of origin as “Produced of RSA” instead of “Product of South Africa”.
3. The telephone numbers of the manufacturer, packer, or seller are not indicated. (
4. The word “Class 1” is regarded as a restricted particular which may create a misleading impression regarding the quality of the product.
 - The indication of the expression "Home Made" creates a misleading impression regarding the origin of the product. The product is not manufactured in a domestic kitchen.

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ACTIONS AND REMARK

REMARKS
Direction issued and discussed with Client

Restricted Particulars (if found)

Other

SIGNATURES

INSPECTOR NAME: MOKGADI SELONE

OWNER / AUTHORISED MANAGER: Chris

INSPECTOR SIGNATURE:

OWNER / AUTHORISED MANAGER SIGNATURE:

Please note:

The butchery, abattoir, production plant, retailer, processing or repacking or importer, can apply for dispensation with the Executive Officer: Agricultural Product Standards Act at the Department of Agriculture, Land Reform and Rural Development (DALRRD) previously the Department of Agriculture, Forestry and Fisheries (DAFF).